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File No.: EXP202210378

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On August 28, 2022, a complaint was filed with registration number REGAGE22e00036880831 before the Spanish Agency for Data Protection against CALLMUSTANG 2019, S.L. with NIF B42685925 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant presents a complaint regarding commercial calls from different lines with different numbers, identifying themselves as their "Energy Advisory," offering discounts on their electricity bill. In the received calls, the complainant states that the interlocutors know their personal data (name, supply address, identity document number, and even their bank account number) and indicate that the source of their data is other companies in the energy sector.

Along with the notification, the following is provided:

- Recording of a call received on their mobile terminal ***TELEFONO.1, on August 27, 2022, at 20:22 hours, from the line ***TELEFONO.2, in which the interlocutor knows all their data. This person claims to have obtained them from companies in the sector.

SECOND: On October 5, 2022, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

THIRD: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

RESULT OF THE INVESTIGATIVE ACTIONS

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From the Data Inspection, it has been confirmed that the operator of the line ***TELEFONO.2 is COLT TECHNOLOGY SERVICES, S.A. UNIPERSONAL.

Representatives of this entity indicate that in August 2022 this line was associated with NEOTEL 2000 S.L.

Representatives of NEOTEL inform that the identifying data of the holder of the telephone line ***TELEFONO.2 as of August 27, 2022, is CALL MUSTANG 2019, S.L. with CIF B42685925 and address at CALLE PEDRO JUAN PERPINYA, 66 ENTRESUELO 03204 ELCHE ALICANTE.

Two requests have been sent to the entity CALL MUSTANG, having been returned as "UNKNOWN" on the dates 06/16/2023 and 07/03/2022.

LEGAL GROUNDS

I

Competence

In accordance with the functions that Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) confers to each control authority and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency

for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Legality of processing

Article 6 of the GDPR details in its paragraph 1 the circumstances under which the processing of third-party data is considered lawful:

"1. Processing shall be lawful only if at least one of the following conditions is met:

a) the data subject has given consent to the processing of their personal data for one or more specific purposes;

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b) the processing is necessary for the performance of a contract in which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;

c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;

d) the processing is necessary to protect vital interests of the data subject or of another natural person;

e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

f) the processing is necessary for the purposes of legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or the fundamental rights and freedoms of the data subject which require the protection of personal data, in particular when the data subject is a child.

The provisions of paragraph f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

III

Conclusion

The investigations carried out by this Agency indicate that the ultimate holder of the numbers from which the calls were made is CALL MUSTANG 2019, S.L., and it has not been possible to confirm the making of the calls by this entity despite multiple requests for information having been made without receiving a response.

Therefore, as it has not been possible to attribute responsibility for the making of the calls and in accordance with what has been indicated by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO THE FILING of the present proceedings.

SECOND: TO NOTIFY this resolution to CALL MUSTANG 2019, S.L., and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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